

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-09

NIELSEN & BAINBRIDGE, LLC

v.

OCEAN NETWORK EXPRESS PTE. LTD.

**THIRD JOINT REPORT AND
ONE’S UNOPPOSED SECOND MOTION TO EXTEND DEADLINES**

COME NOW the parties, Complainants, NIELSEN & BAINBRIDGE, LLC (“Complainant” or “NBG”), and Respondent Ocean Network Express Pte. Ltd. (“Respondent” or “ONE”), by their respective undersigned counsel, and, pursuant to 46 C.F.R. Sections 502.69 and 502.102, hereby submit this Third Joint Report and COMES NOW ONE, by its undersigned counsel, to submit ONE’s Unopposed Second Motion to Extend Deadlines¹ (“Motion”) and respectfully requests an extension of the deadlines set forth in the Presiding Officer’s April 24, 2026 Amended Scheduling Order a second time to accommodate the current progress of the Parties’ discovery, which is progressing as quickly as possible.

I. The Current Schedule

On April 24, 2026, the Presiding Officer entered an Amended Scheduling Order with the following deadlines relevant to this Motion:

¹ The Parties are mindful that two of the deadlines effected by this motion have passed. For the reasons explained below, Respondent would have not been able to submit sufficient detail on why the extension of time is needed prior to this filing and respectfully request, with the consent of Complaint, that the Presiding Officer accepts this late filing.

EVENT	CURRENT DEADLINE
Parties submit any unresolved disputes regarding initial requests for production, ESI, and interrogatories	06/09/2026
Substantial completion of productions of documents and ESI in response to initial RFPs	06/09/2026
Parties file Joint Status Report 3 regarding status of discovery	06/17/2026
Complete depositions of fact witnesses	07/10/2026
Last day to serve interrogatories, requests for admission, and RFPs	07/10/2026
Disclosure of initial expert reports, if any	07/22/2026
Disclosure of rebuttal expert reports, if any	07/31/2026
Complete expert depositions and all discovery	08/12/2026
Close of fact discovery	08/12/2026
Complainant's initial brief, proposed findings of fact, and appendix	09/09/2026
Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	10/08/2026
Complainant's reply and responses to proposed findings of fact	10/21/2026

II. Respondent's Position

As previously reported, Respondent has been working diligently with its data vendor on the review of the 1.4 million documents potentially responsive to Complainant's document requests and their production to Complainant. Due to the sheer volume of documents involved and the limited time available, ONE opted to rely on a Generative Artificial Intelligence ("GenAI") prompt to assist with identifying potentially responsive documents. Following several iterative rounds of ONE collaborating with its data vendor to create the necessary GenAI prompt, extensive quality control measures by both the data vendor and ONE's counsel has revealed that many of Complainant's broad discovery requests tend to initially capture more unrelated documents than not. In an effort to keep the document review process even remotely on track, ONE's data vendor has recently switched over to the manual review of documents concurrent with the perfection of

the GenAI prompt. In the end, minor delays turned into larger ones as more effort was made to ensure that responsive documents were identified.

During this entire process, Respondent has been in constant contact with its data vendor. And, ONE has focused on assisting with the review process. Admittedly, ONE should have alerted Complainant and the FMC to these issues earlier. ONE believed that substantial completion of document production could be achieved by June 9th. However, that is not the case.

Even now, ONE is still trying to determine, with a reasonable level of accuracy, the pace at which additional documents can be produced. The unfortunate reality is that our data vendor cannot provide concrete numbers until the review of each set of documents has been completed. As such, we are left with starting figures and estimates.

On May 8, 2026, Respondent served its first production of 1,062 documents amounting to roughly 2,100 pages. Respondent is still in the process of reviewing a set of about 69,000 potentially responsive documents and is on track to serve Complaint with its second production of documents from this set by June 17, 2026. Our current information is that the next set of nearly 380,000 potentially responsive documents can be review within the week of June 29, 2026, and to be on track to substantially complete the production of documents within the week of July 19, 2026. Respondent estimates that the smaller productions of those responsive documents requiring redactions and a log of privileged documents will follow shortly thereafter. Of course, given our hard learned experience, margins for delay need to be considered.

In short, Respondent remains committed to searching this large data set and producing responsive documents. At the outset, Respondent knew this would take a long time due to the volume of potentially responsive documents to consider even with objections to the scope of

certain document requests. Apparently, Respondent was too optimistic about how long this process would take.

III. Complainant's Position

Complainant does not oppose the present Motion for an extension, as the inability to timely receive and review documents from Respondent prevents Complainant from assessing the adequacy of Respondent's productions, assessing appropriate deponents, scheduling depositions of those deponents, taking such depositions, and engaging in the expert discovery necessary in this action, which in turn will cause irreparable harm to Complainant's ability to prosecute its claims under the present scheduling order absent the requested extension.²

Complainant has diligently attempted to resolve the present delay in Respondent's substantial completion. **First**, the Parties negotiated and, on March 26, 2026, executed an ESI Protocol containing agreed-upon search terms to run against thirteen custodians for Respondent. Although Respondent claims above that "Complainant's broad discovery requests tend to initially capture more unrelated documents than not" Respondent notably has not raised this issue prior to the present Motion. **Second**, on June 8, 2026, Complainant timely emailed counsel for Respondent, the day before the substantial completion deadline, asking for an update on Respondent's productions and, following the lapse of the substantial completion deadline on June 9th without a response to Complainant's June 8th communication or a production, requested on June

² Further, "If a party or a party's officer or authorized representative fails or refuses to obey an order requiring it to make disclosures or to respond to discovery requests, the presiding officer upon his or her own initiative or upon motion of a party may make such orders in regard to the failure or refusal as are just". 46 C.F.R. § 502.150(b). In light of such failures, a Presiding Officer may: "(1) Direct that the matters included in the order or any other designated facts must be taken to be established for the purposes of the action as the party making the motion claims" (i.e., make adverse inferences), "(2) Prohibit the disobedient party from supporting or opposing designated claims or defenses, or from introducing designated matters in evidence;" or "(3) Strike pleadings in whole or in part; staying further proceedings until the order is obeyed; or dismissing the action or proceeding or any party thereto, or rendering a decision by default against the disobedient party." *Id.*

10th a meet and confer with Respondent, which occurred on June 11th. **Third**, Complainant has urged Respondent to file the present motion as soon as possible—by June 12th at the latest.

Complainant has further satisfied its obligations under the present scheduling order—making three rolling productions constituting substantial completion to Respondent between April 7, 2026 and May 29, 2026, totaling over 150,000 pages—and does not oppose the present Motion so that the Parties can remain on equal footing with respect to discovery and preparing the case for argument on the merits.

The Parties jointly acknowledge that the prompt resolution of claims and disputes arising under the statutes administered by the Commission is a crucial goal, one that the deadlines for issuing initial and final decisions are intended to achieve, and that scheduling orders are an essential part of that process.

IV. Progress to date

Aside from Respondent’s initial production noted above, Complainant’s total productions of documents to date amount to 66,445 documents. A first production of 24,968 document amounting to 42,194 pages was received on April 6, 2026. A second production of 18,017 documents amounting to 38,861 pages was received on April 29, 2026. A third production of 23,460 amounting to 88,598 pages was received on May 29, 2026.

Once Respondent’s productions are substantially completed, the Parties will still need the time to review the voluminous batches of document productions and prepare to take potentially numerous depositions. Respondent notes that, at this point in time, Complainant has identified around 50 potential facts witness in its initial disclosure and response to discovery demands, 26 of which appear to be former NBG’s employees, and several others appear to be employees of third

parties the relevancy of which is to be determined³. Respondent has identified 14 potential ONE employees that may be called as fact witnesses, subject to revision or potential reduction once Respondent has substantially completed document production.

The parties are also mindful that the recently issued Initial Decision in 20230930-DK-*Butterfly-1, Inc. F/K/A Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Dkt. No. 23-02, 2026 WL 1285696 (ALJ April 24, 2026), addresses issues similar to some of those raised in this proceeding and will be working on narrowing the issues before them including through the use of experts. The experts' involvement will become more prominent after the review of the parties' productions and through the deposition of facts' witnesses' phase.

Even taking into account the Parties' efforts to working together in narrowing the issues, this request is based on the pace of Respondent's productions and reviews even when using all resources and all good faith efforts. The Parties note that, even if Respondent had substantially completed its productions on June 9th, the Parties would likely have still sought an extension of time to review such voluminous documents in advance of depositions, and anticipate that the Parties may seek such an extension if necessary at a future date. That said, to address the present discovery schedule in any workable manner, using all reasonable efforts, ONE respectfully submits that the request made herein be granted.

V. Good Cause Exists to Extend the Current Deadlines

A. Large Discovery Volumes Contribute to the Need for an Extended Timeframe

The facts concerning the status of discovery can be summarized as follows: the Parties have worked diligently and cooperatively in order to meet the Scheduling Order's June 9, 2026

³ Respondent notes that Complainant initial disclosures were provided prior to the severance of the Respondents that are parties in the related proceedings filed by Complainant.

deadline for substantial completion of document (including ESI) production, have made rolling productions of documents to one another, and have met and conferred, but as explained the volume of the documentation and other vendor related issues prevented Respondent the meeting of that deadline.

From the documents collected, both Parties must manually review them for the information they offer, organize them, address any privilege issues and finally marshal a working knowledge of all to allow further steps, such as depositions, to be done in a meaningful manner. That process necessarily requires substantial time and care. This review will cover hundreds of thousands of documents to be reviewed by the Parties for production.

The Parties have continuously worked with their respective e-discovery partners to streamline the process as much as possible and continue to do so, but there is no question the entire process has been time and effort intensive.

As a part of the ongoing review and rolling productions process, the Parties will need to work to review the substantial amount of documents that are pulled in by the Parties' ESI Protocol terms. The Parties submit that the substantial volume of documents, the need for thorough review, and the pace that the documents can be intelligently reviewed is a good cause reason for an extension of time to ensure that the Parties can complete their discovery obligations effectively and each Party is not prejudiced by the fact that a very large amount of documents have been collected in accord with discovery demands properly put forth.

B. The Large Discovery Volumes Will Impact Other Case Milestones

The Parties remain respectful of the deadlines set forth in the April 24, 2026 Scheduling Order, and to date have worked together diligently and collaboratively to satisfy its terms. However, the complexity and the expected size of the responsive documentation has made it clear

to the Parties that even with all their best efforts, they will not be able to complete production and review of document discovery within the present deadlines. Consequently, the Parties would not be able to adequately prepare for and take depositions based upon a full factual record and further would not be able to present their respective claims and defenses adequately in their respective briefs or in any eventual trial in this action.

The Parties have and continue to work to limit the need for any discovery-related disputes to be brought before the Presiding Officer. To facilitate this goal while providing the Presiding Officer with timely updates, the Parties propose providing a second Fourth Status Report to the Presiding Officer by August 4, 2026.

The Parties are aware of the prior Order of this tribunal and the Chief Administrative Law Judge Erin M. Wirth's Order in *Way Interglobal Network LLC v. Shenzheng SCM Limited*, FMC Dkt. No. 22-28, Dk. No. 18, denying a request for 120 additional days and instead granting a 45-day extension. In making this Motion, the Parties have limited their request to the most reasonable amount of time in which they believe they can feasibly conduct discovery in this large, complex litigation, with the understanding that they will also continue to work to stipulate to facts, limit depositions, and expeditiously resolve discovery disputes and produce documents promptly to the extent possible.

Although the Parties will continue to endeavor to adhere to the ordered schedule, the sheer volume of documents may make for an impossible situation as is the case now. Other reasons may include issues arising from the collection and production of documents located abroad or in the custody of non-parties, the need for significant Party depositions, or the need for testimony from non-parties or individuals located abroad (including employees of Respondent). The Parties will work to limit such extension requests, including by working to facilitate consent for email service

of subpoenas and provision of contact information, where available. However, in the interest of full transparency, the Parties wish to note such possible issues to the Presiding Officer now. Indeed, as is a matter of public record, in an action before the Commission by the complainant in that case against another ocean carrier in *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Docket No. 23-02, where the complainant has raised similar legal claims as in the present action, the parties there took over 30 total depositions.

Rule 102(a) of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause."

As shown above, a higher volume of documents by many magnitudes is involved in this matter than the 20,000 pages cited by the parties in *One Banana North America Corp. v Hapag-Lloyd AG et al.*, FMC Dkt. No. 22-03, in which the Presiding Officer granted an approximate 75-day extension from the originally ordered production and deposition deadlines. Instead, this case is much more similar to that in *Bed Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Docket No. 23-02, where, as mentioned, over 30 depositions were taken. Given the significant number of custodians in the present case, it is possible that the number of depositions conducted in this case will approximate those which were taken in the *BBBY v. OOCL* proceeding. If so, both Parties are intent on avoiding any wasteful actions and will work to streamline all such developments to their fullest ability.

VI. Conclusion

Given that Respondent is still working diligently to review and produce documents, and that the Parties will need time to review such documents once produced, the Parties respectfully

submit that an extension of the deadlines in the Presiding Officer's November 24, 2026 Scheduling Order is necessary to allow the Parties a fair opportunity to review and conclude their respective production of documents, review such productions from the opposing party or third parties, depose each other's respective fact and expert witnesses, and assess any additional discovery. The Parties will endeavor to avoid seeking additional extensions of time and, to the extent motions are needed to prepare for and conduct depositions following Respondents's substantial completion or for other reasons, will seek to raise them as soon as the need appears and, where possible, file them jointly.

ONE therefore requests the following amended Scheduling Order for substantial completion of document (including ESI) production, which is unopposed by Complainant:

EVENT	CURRENT DEADLINE
Parties submit any unresolved disputes regarding initial requests for production, ESI, and interrogatories	07/28/26
Substantial completion of productions of documents and ESI in response to initial RFPs	07/28/26
Parties file Joint Status Report 4 regarding status of discovery	08/04/26
Complete depositions of fact witnesses	09/04/26
Last day to serve interrogatories, requests for admission, and RFPs	09/04/26
Disclosure of initial expert reports, if any	09/25/26
Disclosure of rebuttal expert reports, if any	10/16/26
Complete expert depositions	10/30/26
Close of fact discovery	10/30/26
Complainant's initial brief, proposed findings of fact, and appendix	11/30/26
Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	12/30/26
Complainant's reply and responses to proposed findings of fact	01/14/26

Pursuant to 46 C.F.R. Section 502.71(a), counsel for Complainants and counsel for Respondent have discussed this Motion with each other in a good faith effort to determine whether

there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement.

WHEREFORE, the Respondent prays that its Second Motion to Extend Deadlines be granted.

Dated: June 12, 2026

Respectfully submitted,

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